

Form FDO1

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant/Petitioner

and

[name]

Respondent

Interim Order for Child Support

Before [the Honourable Justice/Court Officer name or blank] :

A motion was made on [date] , 20 , by [name of moving party] , for an interim order for child support at the table amount under the *Child Support Guidelines* [describe the circumstances of motion];

The parties have [number of *child/children*] : [Provide full name of each child and birth date.]

The [name of other party] is found to have an annual income of \$ [amount] based upon [set out basis upon which total annual income is determined] for the purpose of determining the table amount of child support;

The motion of [name of moving party] was determined after [*hearing from both parties/ hearing from*] [name of moving party] only with [name of other party] [failing to appear/ describe circumstances] ;

[*And upon the Court Officer being satisfied that it would be appropriate to grant an Order in accordance with Civil Procedure Rule 59.33;*]

On motion of [name of moving party, parties, or counsel] : the following is ordered under [section 15.1 of the Divorce Act/section 9 of the Parenting and Support Act] .

Payment of child support

- 1 [name of other party] shall pay child support to [name of moving party] pursuant to the *Child Support Guidelines* and in accordance with the Nova Scotia table, the amount of \$ [amount] per month, payable on the first day of each month, and commencing [date] , 20 .

Method of payment

- 2 All support payments must be made payable to [name of party receiving support] .

The payments must be sent by [name of party paying support] to the Office of the Director of Maintenance Enforcement, P.O. Box 803, Halifax, Nova Scotia, B3J 2V2, while the order is filed for enforcement with the Director.

A court officer must send the current designated addresses of the parties, and a copy of this order, to the Office of the Director of Maintenance Enforcement in accordance with section 9 of the *Maintenance Enforcement Act*.

Both parties must advise the Office of the Director of Maintenance Enforcement of any change to their address, within ten (10) days of the date of the change, under section 42(1) of the *Maintenance Enforcement Act*.

[name of party paying support] must advise the Office of the Director of Maintenance Enforcement of a change in location, address and place of employment, including the commencement or cessation of employment, within ten (10) days of the date of the change, under section 42(2) of the *Maintenance Enforcement Act*.

Issued [date] , 20 .

Court Officer

[Add the following when the order is made by a court officer.]

[Note that when an order is made by a court officer, the *Civil Procedure Rules* permit you to make a motion to the court officer to terminate or change the order, or appeal the order to a judge. The motion must be made or the appeal started, no more than ten days after a copy of the order is delivered to you.]